

4-960. Notice of completion of briefing; upon conviction.

[For use with District Court Rule 1-077.1 NMRA]

STATE OF NEW MEXICO

COUNTY OF _____

_____ JUDICIAL DISTRICT COURT

In re _____,

No.

Petitioner.

NOTICE OF COMPLETION OF BRIEFING

(for use with petitions filed under Section 29-3A-5 NMSA 1978 (Expungement of Records upon Conviction))

Petitioner hereby notifies the Court, in accordance with Rule 1-077.1(H) NMRA, that briefing is complete as to Petitioner's Petition to Expunge Arrest Records and Public Records and the Petition is ready for decision. Petitioner further states:

☐ Notice of the Petition has been provided via first-class United States mail to:

☐ The District Attorney in the _____ Judicial District;

☐ The New Mexico Department of Public Safety;

☐ The law enforcement agency that arrested Petitioner.

☐ At least sixty-three (63) days have passed since Petitioner mailed the Petition to the parties entitled to notice.

☐ The District Attorney:

☐ Has filed a Notice of Non-Objection; [~~or~~]

☐ Has filed an objection; or[-]

☐ Has not filed a response.

☐ The New Mexico Department of Public Safety:

☐ Has filed a Notice of Non-Objection; [~~or~~]

☐ Has filed an objection; or[-]

☐ Has not filed a response.

☐ The law enforcement agency that arrested Petitioner:

☐ Has filed a Notice of Non-Objection; [~~or~~]

☐ Has filed an objection; or[-]

☐ Has not filed a response.

☐ Petitioner has included an Affirmation in Support of Expungement (Form 4-960.3 NMRA) with this Notice of Completion of Briefing.

Printed name of Petitioner

Signature of Petitioner

Mailing Address

Telephone Number

Date

Attorney Name (*if applicable*)

Attorney Signature

Mailing Address

Telephone Number

Email

CERTIFICATE OF SERVICE

I hereby certify that on this _____ day of _____, _____ this Notice of Completion of Briefing was mailed by United States first class mail and addressed to:

(The District Attorney in the _____ Judicial District)

(Address)

(Telephone)

AND

New Mexico Department of Public Safety

P.O. Box 1628, Santa Fe, New Mexico, 87504-1628

(505) _____

AND

(The law enforcement agency that arrested Petitioner)

(Address)

(Telephone)

Signature of person sending paper

Date of signature

[Provisionally adopted by Supreme Court Order No. 21-8300-033, effective for all cases pending or filed on or after January 28, 2022; provisionally adopted form approved as amended by Supreme Court Order No. S-1-RCR-2024-00099, effective for all cases pending or filed on or after December 31, 2025.]